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### Calendar Lines 3-4

**Case Name:** *Paula Byrne v. Google, LLC*

**Case No.:** 24CV453711

Defendant Google, LLC (“Google”) demurs to the first, fourth, and eighth causes of action alleged in the third amended complaint (“TAC”) filed by Plaintiff Paula Byrne (“Byrne”). Google also moves to strike punitive damages from the TAC’s prayer for relief and paragraphs 264 and 265 from the TAC.

By way of background, the court notes that in May 2025 the court (Judge Pennypacker) sustained, with leave to amend, Google’s demurrer to the first, second, fourth, fifth, eighth, ninth, and tenth causes of action alleged in the initial complaint. (Order Sustaining In Part, Google’s Demurrer to Plaintiff’s Complaint, filed May 13, 2025.) On April 15, 2026, the court sustained Google’s demurrer to the second amended complaint’s (the “SAC”) first, fourth, and eighth causes of action with leave to amend. (Order Re Demurrer and Motion to Strike (“Prior Order”), filed April 15, 2026.)

## 1. First Cause of Action: Sex Discrimination

### i. Disparate Treatment

California’s Fair Employment and Housing Act law (“FEHA”) prohibits discrimination on the basis of sex, which includes pregnancy, childbirth, and related medical conditions. (Gov. Code, § 12926, subd. (r)(1).) While the “specific elements of a prima facie case may vary depending on the particular facts . . . [g]enerally, the plaintiff must provide evidence” that they were a member of a protected class, they were qualified for the position sought or competently performing the position held, they suffered an adverse employment action, and some other circumstance that suggests discriminatory motive. (*Guz v. Bechtel National, Inc.* (2000) 24 Cal.4th 317, 355 internal citations omitted.) A plaintiff may state a claim for discrimination under theories of disparate treatment or disparate impact. (*Mahler v. Judicial Council of California* (2021) 67 Cal.App.5th 82, 112 (*Mahler*).)

“Disparate treatment is *intentional* discrimination against one or more persons on prohibited grounds.” (*Rosenfeld v. Abraham Joshua Heschel Day School, Inc.* (2014) 226 Cal.App.4th 886, 893 (*Rosenfeld*), internal quotation marks and citation omitted, emphasis original.) In the Prior Order, the court sustained Google’s demurrer to the SAC’s cause of action for discrimination on the basis of sex because the SAC did not allege facts indicating a discriminatory motive. (Prior Order, p. 2:17-22.) Rather, the court noted that the SAC, like the

initial complaint, alleged gender discrimination on the basis that Google terminated Byrne for taking leave but that this practice affected both women and men. (*Ibid.*)

The TAC addresses these issues. The TAC alleges facts and circumstances suggesting a discriminatory motive, as opposed to alleging generally that Google had a policy that discriminated against Byrne on the basis of sex but that this practice equally impacted both men and women. Specifically, the TAC alleges that Byrne was a member of a protected class based on her sex and because she was pregnant. (TAC, ¶ 112.) The TAC further alleges that Google gave Byrne “excellent performance reviews and merit compensation,” which in turn “show[ed] she was performing competently in the job she held.” (*Id.* at ¶ 113.) The TAC further alleges that in or around the winter of 2022, Byrne became pregnant, Byrne reported this to Google early in her pregnancy, and Byrne informed Google two weeks prior to her planned pregnancy leave that her doctor had ordered her to take emergency pregnancy and disability leave. (*Id.* at ¶¶ 39-40, 45-48.) In June 2023, while Byrne was on leave, Google allegedly reorganized Byrne’s team, demoted Byrne to a “position she never worked before she was laid off,” and promoted in her place a woman under forty with “no (known) disabilities, pregnancies, children or use leave.” (*Id.* at ¶¶ 51-54, 59.) In November 2023, during Byrne’s maternity leave, Google allegedly laid Byrne off. (*Id.* at ¶¶ 21, 62.) Along with these allegations, the TAC alleges “fourteen relevant facts” indicating “intentional discrimination”: after Google allegedly demoted Byrne to a position she had had never worked in while she was taking leave, Google used “time in role” and “productivity indicators” as layoff selection criteria against Byrne; shortly after laying Byrne off Google blocked Byrne from accessing Google’s internal systems; “66% of [Byrne’s] team members selected for layoff were on” or had taken or requested “pregnancy-related leave”; and the manager who selected Byrne for layoff allegedly discriminated and retaliated against “two recently-pregnant female” employees who were laid off. (*Id.* at ¶ 8.)

The court finds that these allegations are sufficient to establish a prima facie case that Google discriminated against Byrne on the basis of pregnancy. “Pregnancy discrimination is a form of sex discrimination.” (*Sanchez v. Swissport, Inc.* (2013) 213 Cal.App.4th 1331, 1340, citing Govt. Code, § 12926, subd. (q) [defining sex discrimination to encompass pregnancy discrimination].)

The court OVERRULES Google’s demurrer to the TAC’s first cause of action.

As a demurrer does not lie to a portion of a cause of action, and the TAC pleads theories of disparate treatment and impact, the court does not need to address the TAC’s disparate impact allegations but will nevertheless briefly do so. (*PH II, Inc. v. Superior Court* (1995) 33 Cal.App.4th 1680, 1682.) The Prior Order found that the SAC failed to sufficiently plead facts supporting a theory of disparate impact because it alleged how Byrne planned “to analyze relevant statistics to show a disparate impact” but did not “allege facts or statistical evidence demonstrating a causal connection between the challenged policy and a significant disparate impact on the allegedly protected group.” (Prior Order, pp. 2:26-3:4, quoting *Mahler, supra*, 67 Cal.App.5th at p. 114.) The TAC alleges that at the time Google terminated Byrne’s employment, “four of the six members of her team who had been selected for the same layoff were women who were on, had taken, or had requested pregnancy-related leave, as well as half of the employees from the adjacent video team . . .” (TAC, ¶ 103.) The court is not convinced

by Google’s argument that these allegations fail to demonstrate a “significant disparate impact” under *Mahler*. (Reply in Support of Demurrer (“Demurrer Reply”), p. 6:5-23.) Google offers the court no authority discussing what constitutes a “significant” disparate impact, and the TAC alleges that “66% of PLAINTIFF’s team members selected for layoff were on, had taken or had requested pregnancy-related leave while 100% of the persons on her team not selected for layoff did not have (known) pregnancies or had used pregnancy or disability leave . . .” (TAC, ¶ 8.) The court is more persuaded by Google’s argument that Byrne fails to identify a “facially neutral policy” under *Stout v. Potter* (9th Cir. 2002) 276 F.3d 1118 which, as Google notes, Byrne’s opposition does not appear to respond to. (Memorandum of Points and Authorities in Support of Demurrer (“Demurrer MPA”), pp. 8:13-9:10; Demurrer Reply, p. 5:27-28; *Sehulster Tunnels/Pre-Con v. Traylor Brothers, Inc.* (2003) 111 Cal.App.4th 1328, 1345, fn. 16 [failure to address point is “equivalent to a concession”].) Nevertheless, the court overrules Google’s demurrer because a demurrer does not lie to a portion of a cause of action and the court has found that the TAC otherwise pleads sufficient facts to support its first cause of action.

## **2. Fourth Cause of Action: Failure to Prevent Sex Discrimination**

Google argues that because the TAC fails to sufficiently plead its first cause of action, its fourth cause of action also necessarily fails. (Demurrer MPA, p. 12:1-11.) The court, however, is overruling Google’s demurrer to the TAC’s first cause of action.

The court OVERRULES Google’s demurrer to the TAC’s fourth cause of action.

## **3. Eighth Cause of Action: Retaliation**

In the court’s order on Google’s demurrer to the initial complaint, it found that the initial complaint’s allegations as to the eighth cause of action for retaliation failed to “demonstrate a ‘reasonableness’ to Plaintiff’s belief that a law was *actually* being violated at the time of her reporting.” (Order Sustaining, In Part, Google’s Demurrer to Plaintiff’s Complaint, filed May 13, 2025, p. 11:19-26, emphasis original, quoting *Ferrick v. Santa Clara University* (2014) 231 Cal.App.4th 1337, 1346 (*Ferrick*).) In this order, the court noted that the “only statutes, rules or regulations identified are the whistleblower and retaliation statutes themselves.” (*Id.* at p. 11:23-26.) The Prior Order, reiterating this finding, noted that the SAC still did “not provide a basis as to why Byrne believed Google’s alleged conduct was illegal when Byrne reported it. . . . Again, the court notes that the only statutes, rules, or regulations identified [in the SAC] are the whistleblower and retaliation statutes themselves.” (Prior Order, pp. 3:27-4:6.)

Labor Code section 1102.5 is a whistleblower statute, the purpose of which is to encourage workplace whistle-blowers to report unlawful acts without fearing retaliation. (*Soukup v. Law Offices of Herbert Hafif* (2006) 39 Cal.4th 260, 287.) “Labor Code section 1102.5, subdivision (b) . . . requires only that an employee disclose information and that the employee reasonably believe the information discloses unlawful activity.” (*Ross v. County of Riverside* (2019) 36 Cal.App.5th 580, 592-593, internal citation omitted.)

The court agrees with Byrne that the TAC sufficiently alleges that Byrne reasonably believed that a law was “actually being violated at the time of her reporting.” The TAC alleges

that Byrne knew FEHA prohibited pregnancy discrimination when she disclosed suspected pregnancy discrimination to Google. (TAC, ¶¶ 89-101.) “Shortly after the layoff,” Byrne “reported to several current and former Google employees with the ability to investigate that she was aware that nearly all of the employees selected for layoff from her team and the adjacent team had recently been pregnant and had taken pregnancy, medical or parental leave, and that she believed Google’s conduct to be illegal.” (*Id.* at ¶ 89.) Byrne disclosed this information that “she reasonably believed to *violate the law (FEHA)* to employees with the authority to investigate her allegations of unlawful behavior (her managers).” (*Id.* at ¶ 231, emphasis added.) These allegations are sufficient to show that Byrne “had a reasonable basis” to suspect illegal activity. (*Ferrick, supra*, 231 Cal.App.4th at p. 1346, citation omitted.)

However, the court is persuaded by Google’s causation argument. A *prima facie* case of retaliation requires that a plaintiff show that they engaged in protected activity, that they were thereafter subjected to adverse employment action, and there was a causal link between the two. (*Lawson v. PPG Architectural Finishes, Inc.* (2022) 12 Cal.5th 703, 710.) Relatedly, Labor Code section 1102.6 “requires whistleblower plaintiffs to show that retaliation was a ‘contributing factor’ in their termination, demotion, or other adverse action. This means plaintiffs may satisfy their burden of proving unlawful retaliation even when other, legitimate factors also contributed to the adverse action.” (*Id.* at pp. 713-714, internal citations omitted.)

As Google points out, the TAC does not allege that any individual Byrne reported protected activity to was “in charge of hiring for the positions to which she applied,” that any of these individuals shared this information with others, or that any of these individuals had any authority within Google at all other than an “authority to investigate.” (Demurrer MPA, p. 14:14-16.) Google also persuasively notes that the TAC has not alleged that the people Byrne “reported her concerns to controlled her security access to Google systems.” (*Id.* at p. 14:16-17.) At best, the TAC alleges that Byrne reported to unnamed former and current Google employees “with the ability to investigate” that she “was aware that nearly all of the employees selected for layoff from her team and the adjacent team had recently been pregnant . . .” (TAC, ¶ 232.)

It is unclear from this allegation that any Google employee with the authority to make decisions regarding Byrne’s employment or access to Google internal systems had any knowledge that she reported protected activity. As Google emphasizes in reply, “[e]ssential to a causal link is evidence that the employer was aware that the plaintiff had engaged in the protected activity.” (*Morgan v. Regents of University of California* (2000) 88 Cal.App.4th 52, 69-70, internal citations and quotation marks omitted.) The court further notes that statutory causes of action must be pleaded with particularity. (*Covenant Care, Inc. v. Superior Court* (2004) 32 Cal.4th 771, 790.) The court is therefore not persuaded by Byrne citing *Bockrath v. Aldrich Chemical Co., Inc.* (1999) 21 Cal.4th 71 (*Bockrath*), where the California Supreme Court noted that in “the *ordinary personal injury lawsuit* . . . it suffices to plead causation succinctly and generally.” (*Bockrath, supra*, 21 Cal.4th at p. 78, internal citation omitted, emphasis added; Opposition to Demurrer, p. 7:10-13.)

A plaintiff bears the burden of demonstrating that a defect identified on demurrer could be cured through amendment. (*Shaeffer v. Califia Farms, LLC* (2020) 44 Cal.App.5th 1125, 1145 [“The onus is on the *plaintiff* to articulate the ‘specifi[c] ways’ to cure the identified defect,

and absent such an articulation, a trial or appellate court may grant leave to amend ‘only if a potentially effective amendment [is] both apparent and consistent with the plaintiff’s theory of the case.’”], internal citation omitted, emphasis original.) Byrne’s opposition does not meet this burden as to the eighth cause of action, and Byrne has already had two prior opportunities to amend.

The court SUSTAINS Google’s demurrer to the eighth cause of action without leave to amend.

#### **4. Motion to Strike**

Google argues that the court should strike punitive damages from the TAC because the TAC fails to sufficiently plead malice, oppression, or fraud under Civil Code 3294. (Memorandum of Points and Authorities in Support of Motion to Strike, pp. 5:24-27.) Google directs the court to *Turman v. Turning Point of Central California, Inc.* (2010) 191 Cal.App.4th 53 (*Turman*), where the Court of Appeal held that the underlying facts associated with a gender discrimination cause of action pled by the plaintiff did not rise to the level of malice, oppression, or fraud. (*Turman, supra*, 191 Cal.App.4th at pp. 63-64.)

Ultimately, the court is persuaded by Byrne’s discussion of *Cloud v. Casey* (1999) 76 Cal.App.4th 895 (*Cloud*). (Opposition to Motion Strike, p. 8:22-26.) In *Cloud*, the Court of Appeal held that a jury could “properly conclude that the corporations intentionally discriminated by denying [the plaintiff] a promotion based on gender, then attempted to hide the illegal reason for their decision with a false explanation, and that in this, they acted in a manner that was base, contemptible, or vile.” (*Cloud, supra*, 76 Cal.App.4th at p. 912.) Here, the TAC alleges discrimination based on sex/pregnancy, disability, and age. (TAC, ¶¶ 107-173.) The TAC further alleges that Google changed Byrne’s job responsibilities while she was on maternity leave, expanded the role of an employee Byrne formerly supervised to include “most” of Byrne’s former roles and responsibilities, this employee did not have a known disability or pregnancy, Google laid Byrne off during her maternity leave because her new role was being eliminated, Google used “time in role” as a selection criteria for laying Byrne off, and that all of this “could be pretext for sex and disability discrimination because [Byrne] took paid time off for pregnancy or disability leave.” (*Id.* at ¶¶ 8, 52-63, 79, 115.) The court finds that these alleged circumstances are analogous to those addressed by the Court of Appeal in *Cloud*.

Google argues that *Cloud* is distinguishable because *Cloud* involved “much more egregious facts than those alleged in Plaintiff’s TAC to support the plaintiff’s claim for intentional sex discrimination.” (Reply in Support of Motion to Strike, p. 5:20-24.) In *Cloud*, executives at a company stated that the company “never had a woman” in the position sought by the plaintiff, that the company “was not comfortable to have a woman in that position,” that “men do not like smart competent women working for them,” and “that perhaps gender was a factor in the decision.” (*Cloud, supra*, 76 Cal.App.4th at p. 911.) While the court acknowledges that similar statements are not at issue here, this factual distinction does not address the Court of Appeal’s more general point that a jury could “properly conclude that the corporations intentionally discriminated by denying [the plaintiff] a promotion based on gender, *then attempted to hide the illegal reason for their decision with a false explanation*, and that in this,

they acted in a manner that was base, contemptible, or vile.” (*Cloud, supra*, 76 Cal.App.4th at p. 912, emphasis added.)

The court DENIES Google’s motion to strike punitive damages from the TAC.